

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

NIDHI R. KAIRA,

Petitioner

VS.

DAVE I. FERGUSON,

Respondent

) Case Number: FDI-19-791832

) Hearing Date: June 9, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER: SWIMMING RESTRICTIONS AT OCEAN BEACH

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Nikhi Kalra (Mother) and Respondent Dave I. Ferguson (Father).
- 2) They share two minor children: Freya (age 11) and Theo (age 8).
- 3) On 4/16/26, Mother filed a Request for Order seeking an order prohibiting both parties from permitting the minor children from swimming in water that is over ankle-deep at Ocean beach or any other beach where there is a swimming advisory or restriction. Mother cites safety concerns and asserts the children are not competent swimmers. Mother concurrently filed a Request for Judicial Notice (file dated 4/8/26) of a Joint Public Service Announcement regarding surf warnings and beach safety tips at Ocean Beach.
- 4) On 5/8/26, Mother filed a Memorandum of Points and Authorities.
- 5) On 5/19/26, Father filed a Request to Reschedule Hearing.
- 6) On 5/22/26, Father filed a Responsive Declaration in opposition to Mother's Request for Order wherein Father agrees to a mutual order that neither parent permit the children to swim at Ocean Beach and that any wading at Ocean Beach be limited to ankle deep water.

- 7) On 6/2/26, Mother filed a Reply Declaration stating she prepared a stipulation and order to document the terms to which Father represented to the Court that he agrees. Mother requests \$10,000 in Family Code section 271 sanctions.
- 8) On 6/2/26, counsel for Mother filed a declaration substantiating her request for \$10,000 in Family Code section 271 sanctions.
- 9) On 6/3/26, Father filed a supplemental declaration in opposition to Mother's request for Family Code section 271 sanctions.
- 10) On 6/3/26, the Court denied Father's Request to Reschedule Hearing.

B. Findings and Order

- 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in violation to civil or criminal penalties, or both. The country of habitual residence of the minor children is the United States.
- 2) The Court finds good cause to adopt the parties' agreement as the order of the Court:
- 3) Neither party may permit the children to swim at Ocean Beach; any wading at Ocean Beach must be limited to ankle deep water.
- 4) Mother's request for Family Code section 271 sanctions is DENIED.
- 5) Counsel for Mother shall prepare the Findings and Order After Hearing.
- 6) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the proposed order after hearing directly to the court. Failure to submit the order after hearing within 10 days may allow the other party to prepare a proposed order and submit it to the court in accordance with CA Rules of Court, Rule 5.125(d).